

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                        |                                            |                                                        |                                    |                                 |
|---------------------------------------------------|----------------------------------------------------------------------------------------|--------------------------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>StaceyAnn McFarlane-Ross         | Team:<br>Squad #15                                                                     | CCRB Case #:<br>201709062                  | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                                        |                                            | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 10/27/2017 4:45 PM    | Location of Incident:<br>In front of 1426 Loring Avenue; Inside of PSA 2 stationhouse. | 18 Mo. SOL<br>4/27/2019                    | Precinct:<br>75                                        |                                    |                                 |
| Date/Time CV Reported<br>Fri, 10/27/2017 10:49 PM | CV Reported At:<br>CCRB                                                                | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Fri, 10/27/2017 10:49 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. POM Alessandro Damico | 21594  | 960099 | PSA 2   |
| 2. SGT Johnny Nicolas    | 4605   | 942800 | PSA 2   |

| Witness Officer(s)   | Shield No | Tax No | Cmd Name |
|----------------------|-----------|--------|----------|
| 1. POM Frank Bauers  | 18837     | 959410 | PSA 2    |
| 2. POM Dustin Morrow | 06079     | 951439 | PSA 2    |

| Officer(s)                | Allegation                                                                                                                                              | Investigator Recommendation |
|---------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Alessandro Damico | Abuse: In front of 1426 Loring Avenue in Brooklyn, Police Officer Alessandro Damico threatened § 87(2)(b) with the use of force.                        | A . Unsubstantiated         |
| B . SGT Johnny Nicolas    | Abuse: Inside of the Police Service Area 2 stationhouse in Brooklyn, Sergeant Johnny Nicolas did not process § 87(2)(b)'s complaint regarding officers. | B . Unsubstantiated         |

### Case Summary

On October 27, 2017, § 87(2)(b) filed this complaint via the Civilian Complaint Review Board's call processing system.

On October 27, 2017, at approximately 4:45 p.m., § 87(2)(b) was on her way to her parked car in front of 1426 Loring Avenue in Brooklyn when she observed PO Alessandro D'Amico and PO Frank Bauers from Police Service Area (PSA) 2 driving in their police van towards her direction. § 87(2)(b) allegedly saw PO D'Amico, who was the driver, extended his arm through the window, placed his fingers in a gun position pointed it at her and said "POW" (Allegation A: Abuse of Authority, § 87(2)(g) and continued driving. § 87(2)(b) described the action left her nervous and angry. § 87(2)(b) immediately got inside of her car and followed PO D'Amico and PO Bauers to La Villa pizzeria located at 82-07 153<sup>rd</sup> Avenue in Queens. After PO D'Amico and PO Bauers entered the pizzeria, § 87(2)(b) approached them with a pen and paper in hand and asked PO D'Amico and PO Bauers to take down their names. She wrote down their names and shield numbers from their nameplates and shields and left.

At approximately 5:30 p.m., § 87(2)(b) drove to the Police Service Area 2 stationhouse in Brooklyn to file a complaint against PO D'Amico and PO Bauers. She met PO Dustin Morrow and Sgt. Johnny Nicolas in which she informed Sgt. Nicolas that she wanted to file a complaint against the aforementioned officers. During their conversation, Sgt. Nicolas allegedly asked § 87(2)(b) if she was sure she wanted to file a complaint against PO D'Amico and PO Bauers. § 87(2)(b) responded yes she was sure that she wanted to file the complaint. Sgt. Nicolas provided § 87(2)(b) the phone number to the CCRB. Sgt. Nicolas did not file § 87(2)(b)'s complaint against PO D'Amico and PO Bauers (Allegation B: Abuse of Authority, § 87(2)(g)). After that, § 87(2)(b) left the stationhouse.

Video footage for this incident was not recovered.

### Findings and Recommendations

#### Allegation (A) Abuse of Authority: In front of 1426 Loring Avenue in Brooklyn, Police Officer Alessandro Damico threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (BR 01, 02, 03) testified as she walked to her car, she was the only person in the area when PO D'Amico and PO Bauers approached her. She observed PO D'Amico extended his entire arm through the driver's side window while looking in her direction, placed his fingers in a gun motion and said aloud, "POW".

PO D'Amico (BR 04) testified, as he drove down Loring Avenue, he did not recall seeing § 87(2)(b). PO D'Amico was shown § 87(2)(b)'s CCRB photograph and he did not recognize her from being on Loring Avenue. He recognized § 87(2)(b) when she approached him at the pizzeria. PO D'Amico denied making a gun gesture at § 87(2)(b) using his fingers and say "POW" towards her.

PO Bauers (BR 05) testified he did not see anyone on Loring Avenue as they drove by. PO Bauers did not see PO D'Amico make a gun gesture with his fingers and he did not hear PO D'Amico say "POW" at § 87(2)(b).

Sgt. Nicolas (BR 06) testified when § 87(2)(b) came to the Police Service Area 2 stationhouse, she provided PO D'Amico and PO Bauers's names and shield numbers to him and informed him that she wanted to file a complaint against them. Sgt. Nicolas contacted PO D'Amico and PO Bauers and informed them of the allegations being brought against them. PO D'Amico and PO Bauers denied committing the allegation.

§ 87(2)(g)

**Allegation (B) Abuse of Authority: Inside of the Police Service Area 2 stationhouse in Brooklyn, Sergeant Johnny Nicolas did not process § 87(2)(b)'s complaint regarding officers.**

§ 87(2)(b) testified after leaving La Villa pizza, she travelled to the PSA 2 stationhouse. She was approached by Sgt. Nicolas who began speaking with her. § 87(2)(b) informed Sgt. Nicolas of what happened with PO D'Amico and PO Bauers, and provided their names and shield numbers to him. Sgt. Nicolas left § 87(2)(b) for approximately five minutes and when he returned, he informed § 87(2)(b) that he spoke with PO D'Amico and PO Bauers who informed him that they were "goofing off" inside of the van. Sgt. Nicolas asked § 87(2)(b) if she was sure of what she saw and informed her that he never had an issue with PO D'Amico and PO Bauers. § 87(2)(b) informed Sgt. Nicolas that she wanted to report them, but he responded, "Are you sure that's what you want to do?" When § 87(2)(b) told Sgt. Nicolas that she thought she had the option to write her complaint, Sgt. Nicolas responded, "Are you sure that's what they did?" § 87(2)(b) responded "yes". Sgt. Nicolas verbally provided § 87(2)(b) with the CCRB phone number without taking her complaint, against PO D'Amico and PO Bauers at the stationhouse.

Sgt. Nicolas testified he was the Desk supervisor when he observed § 87(2)(b) enter the stationhouse and informed him that she wanted to file a complaint against PO D'Amico and PO Bauers in regards to an inappropriate hand gesture. At the time, which was approximately 5:30 p.m., he was the only one present to help her as there were no other officers around. She provided him with their names and shield numbers and he informed her of the several ways in which she could make a complaint and that it takes time. § 87(2)(b) informed him that she did not have the time to stay and wait on the paper work because she had to pick up a family member. Sgt. Nicolas asked § 87(2)(b) if she wanted the phone number to file her complaint and she accepted the number. Sgt. Nicolas wrote the phone number for the CCRB and handed it to § 87(2)(b) and she left the stationhouse.

PO Morrow (BR 10) testified as the telephone switchboard operator, he conducted administrative assignments, assisted walk-ins and assisted Sgt. Nicolas at the desk. He explained, Sgt. Nicolas approached § 87(2)(b) who remained in an enclosed lobby approximately 20 feet away from him which is separated by a door. PO Morrow explained he is unable to see Sgt. Nicolas and is unable to hear anything that is said between Sgt. Nicolas and § 87(2)(b).

§ 87(2)(g)

### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint filed by § 87(2)(b) (BR 09).
- PO D’Amico has been a member of the service for two years. This is the first CCRB complaint filed against him.
- Sgt. Nicolas has been a member of the service for 11 years and has been the subject for two previous CCRB allegations involving two cases. There are no substantiated allegations against Sgt. Nicolas.

### **Mediation, Civil and Criminal Histories**

- § 87(2)(b) rejected to mediate with PO D’Amico or Sgt. Nicolas as an alternative method to resolve the complaint § 87(2)(b).
- On December 20, 2017, the Office of the New York City Comptroller notice of claim had not been filed regarding this incident (BR 07).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]

---

Squad No.: 15

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date